EXHIBIT 5

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

Roberto Sandoval Carrillo, individually and on behalf of all others similarly situated,

Plaintiff,

vs. No. 8:25-cv-00191

The Vons Companies, Inc.; One Source Technology LLC dba Asurint; and Does 1-5,

Defendants.

VIDEO DEPOSITION of ROBERTO SANDOVAL CARRILLO

San Diego, California

October 23, 2025

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Reported by:
Veronica S. Thompson
California CSR 6056, RPR, CRR, CCRR

Job No. 10175551

MR. KIM: Relevance.

THE WITNESS: I can answer that.

MR. KIM: Relevance -- relevance, harassing, and outside the scope of the discovery order.

I'm going to direct you not to answer. This has nothing to do with class certification.

BY MS. LAMAR:

Q. On what do you base your belief that, the person that you compare yourself against, the offenses were basically identical?

MR. KIM: Same objections.

I'm going to direct you not to answer.

BY MS. LAMAR:

Q. Were you -- when you were released from prison, were you placed immediately on supervised release?

A. No.

Q. How long after your release from prison were you placed on supervised release?

A. So I was released from prison September 2022, and I started probation July 2023. So that's nine months, I believe.

Q. Do you have an understanding of why you were not on supervised release for those nine months?

A. Because I was not -- because I was still under

Q. Okay. I believe you said in your appeal that there was something that was very factual and truthful and mitigating and exculpatory?

A. Yes.

Q. And this is this document you're referring to?

A. Yes.

Q. Okay. And other than what you've already told me, what makes this Exhibit 1 very factual and truthful and mitigating and exculpatory?

A. Well, factual because it's taken from the computer monitoring program. I mean, it's not invented. It -- I would be able to prove that I didn't look at most of this and what I did look at was not pornographic.

Had my federal defender looked at the actual videos that my PO was describing up until the point it shows that I shut the video off, I believe he would have seen that what I saw did not become actual pornographic.

And I feel that if I had been able to explain all of that to the judge, she might have considered all of that evidence. She might have agreed, "Okay. Yeah, you didn't look at anything pornographic, but you did click into a website, so you patronized the place."

And I think, you know, if I win the appeal and go back to court and I do have the opportunity to

present all of this, maybe the judge would reconsider because -- my PO just wanted to establish some additional conditions and just kind of have the judge remind me and reinforce the conditions that were already there.

But the judge took it upon herself. She decided to reset my probation. So when I say "mitigating," I feel like if the judge were aware of the actual details and facts of everything that actually happened the way it happened, might not have decided to reset my probation. And so if I'm able to go back on appeal, what I'm hoping is that she will reconsider that and I won't -- you know, I'll get that year and a half of probation that I served back on my record and completed within the original ten years.

Q. I don't think I understood what you just said.

So are you suggesting that Ms. Johnson reported the violation because she wanted the judge to remind you of what your -- the provisions of your supervised release were?

A. Not remind me but just, you know, reinforce them in the sense of like, "Okay. You need to take this seriously." I mean, that's basically what she told me.

I mean, if it was -- if it had been like a severe, blatant, purposeful violation, she could easily

Q. What were the hours that you were scheduled to work?

A. You mean the number of hours?

Q. Yes, per week.

A. Per week? Probably like 25 to 30.

Q. And what were your job duties?

A. As a deli clerk, my main duty was to take -- you know, customer service. Customers would basically order deli meats and cheeses, so I had to slice them up, get the correct weight or number of slices, and then weigh them, put the price tag on them.

Other than that, cleaning, you know, at the end of the work shift, putting away things and washing pans and sweeping and mopping, keeping it clean. There were other stuff, but that's more or less it.

Q. And who was your supervisor?

A. My immediate supervisor? Her name was Holly.

Q. What's Holly's last name?

A. I don't know.

Q. And you said immediate supervisor. Did you have another person that you reported to?

A. No. I mean, there was the general manager of the store. I think her name was Laura, but Holly was the deli, like, manager. But I guess they call them deli lead -- leader or lead. So I think she was

their own thing, yeah.

Q. Do you know the ages of any of those people?

A. Not the exact ages, no.

Q. Do you know if they were all over 18?

A. Yes.

Q. And how do you know that?

A. They all looked well over 18.

Q. Other than them looking over 18, did you have any way of knowing that they were all over 18?

A. When I applied, the position said 18 or older.

Q. Did you interact with children as customers?

A. There might have been a few occasions where someone who looked under 18 -- I don't know for sure -- came and ordered something like a combo meal or something like that. They could have been 18. They could have been 17. I don't know.

I don't remember a single incident of someone that looked like -- you know, like a child where I know that they're under 18. It was more like this person could be 17, they could be 18.

Q. And was it your understanding that you would cross the paths of children or minors just going in and out of the deli?

A. That there could be children in the store when I'm walking through?

Q. Yep.

A. Yes, of course.

Q. What about when you use the restroom?

A. There was a restroom specifically for employees.

Q. And that's the only one that you ever used?

A. Yes.

Q. Do you know what the age of the employee -- was there -- strike that.

Are you aware if there was any minors that worked at the Vons location --

A. I'm --

Q. -- that you worked at?

A. -- not aware.

Q. And I'm going to ask, just -- remember, I warned you earlier that after lunch we tend to talk over each other, so I'm going to ask the question again just so I can get the complete question out.

A. Oh.

Q. And then wait till I get it out --

A. Okay.

Q. -- and then answer.

So during the time that you worked at Vons, were you aware of any minors that worked at Vons?

A. I was not aware of any minors.

Q. Did you ever inquire to find out if there was any minors that worked at Vons during that time?

A. No, I did not.

Q. I'm going to mark as Exhibit 2 a single-page document that's Bates-stamped Vons Carrillo 36.

(Exhibit 2 was marked for identification.)

BY MS. LAMAR:

Q. Have you seen this document before?

A. I don't recall it, but if I signed it, then I must have.

Q. Well, is that your signature where it says "associate signature"?

A. Yeah. It looks like my signature.

Q. Do you have any reason to believe that this is not your signature?

A. No.

Q. Did you understand that your commitment to legendary service at Vons required that you greet every guest?

A. I mean, I honestly -- I mean, I greeted everyone who came to the deli counter.

Q. Did you understand that you had to ask every guest if they needed help and suggest a sale where possible?

A. I did so from behind the deli counter.

Q. Did you understand that you had to make sure that every guest is escorted to the product when they ask?

A. Yeah. And I was never asked by a customer to -- I mean, in the second place, I had just started working there, so I didn't even know where everything was, so I would have just referred them to a coworker.

Q. Okay. But you understood that it was your -- part of your responsibility in the commitment to legendary service at Vons to make sure that every guest is escorted to the product when they asked. Correct?

A. Yeah.

Q. And you understood that you were to offer every guest carryout service. Correct?

A. No. That I don't -- what do you mean by that?

Q. It is the seventh bullet point under "Our service commitment is."

A. So I'm thinking that some of this stuff they just put it all together but doesn't apply to every position. I would think, like, if you're a cashier or a courtesy clerk, then, yeah, you're going to do that. But as a deli clerk, it's -- it's not realistic to say, you know, "After you're done shopping, if you would like, I can help you carry out your bags." So I think this is kind of very general, but I don't think managers

anything yet, so until they let me know," you know, "just keep coming to work," because I was doing a good job and she -- she just said, "Once they tell me I need to let you go, I'll let you know."

Q. So approximately how many days did you continue to work after you received that letter?

A. I think it was like a month before Laura came to me and said, "Okay. Yeah, they've contacted me, and they told" -- "let me know that I need to let you go."

Q. And she told you in person?

A. Yeah. In her office, yeah.

Q. Was anyone else present?

A. No.

Q. Did she provide you with the reason?

A. I don't remember, but I think she said, "They've" -- "they contacted me, and," you know, "I guess it's regarding your" -- "the background check, and they informed me that I need to let you know" -- "let you go."

Q. I'm going to mark as Exhibit 3 a document Bates-stamped Vons Carrillo 56.

(Exhibit 3 was marked for identification.)

BY MS. LAMAR:

Q. Have you seen this document before?

A. As a physical letter, I never received

anything from Asurint or Albertsons. If it was sent as an email -- let me take a look at it.

Okay. So based on what I've read so far, this looks like the letter they sent me about a month after I started working.

Q. Okay. And did you respond to this letter?

A. Yes.

Q. Okay. And how did you respond?

A. By email.

Q. Do you recall what you said?

A. I believe -- so they said if I wish to present mitigating evidence or evidence of rehabilitation, you should send an email to the -- this email.

So I responded to the email, sending some documents that I felt would maybe help them reconsider and allow me to stay employed, and I did it within the five days that they asked me to.

Q. Okay. I'm going to mark as Exhibit 4 a document that's Bates-stamped Plaintiff 538 through Plaintiff 543.

(Exhibit 4 was marked for identification.)

BY MS. LAMAR:

Q. Let me know when you've had a chance to look over this document.

A. Okay.

Q. Is this the email that you sent in response to that letter that we marked as Exhibit 3?

A. I believe it's one of them, yes.

Q. You sent another one?

A. Well, I know I also sent it to Asurint, okay, so they're CC'ed here. I may have sent something identical directly to Asurint because I believe she told me that -- that I needed to send it to them. I believe she responded saying that they're, you know, the ones who need to receive that information.

Q. Who's the "she" that you're referring to?

A. I guess it's this Crystal Maving.

Q. She told you that you had to send it to Asurint?

A. If I remember correctly, she emailed me saying, you know, that they're the ones who make the decision. You have to send that information to them. So I just -- I sent it to her and to them to cover my bases --

Q. They make what decision?

A. To look at the documents I was sending them to reconsider not terminating me.

Q. Are you positive that's what she told you?

A. I believe so, and I believe I sent an email to my attorney that showed that.

have -- if I have any felony convictions, I stated yes. And where it says what that conviction was, I put the name of the conviction.

Q. Okay. And you said, "It was a terrible mistake that I made while under the influence of alcohol."

Is it true that on the occasions that you were viewing child pornography that you were under the influence of alcohol?

A. Yes.

Q. Every single instance?

A. Yes. At the time I was drinking -- I had started drinking more, yeah.

Q. And then you tell her, "But I assure you that I do not pose a threat to the public."

A. Yes.

Q. And why do you believe that you do not pose a threat to the public?

A. I mean, I also explained, I think in a previous email, I had been a teacher for 15 years. I was working directly with minors. The FBI conducted an investigation afterwards, like it was on the news. The school district knew. They told students if anything's ever happened, please come forward. I'm sure they even looked at my computers at work.

at the end of February, and this is dated March 8.

Q. Okay. And you were just giving me your best estimate. I'm not actually concerned about the exact dates, but -- so you were working for Vons for approximately two months. Correct?

A. Yeah. And I'm pretty sure I stopped working for them in February. So I just -- I don't want to say I -- I received this document because that date doesn't look right to me. I would have received it sooner, and so it just -- I cannot confirm this is the exact document I received just based on the date.

Q. Okay. But you see where it says, "Please note that Asurint did not make this employment decision on behalf of our company"?

A. Yes, which --

Q. "The decision was made pursuant to Vons/Pavilions hiring policies"?

A. Yeah. And that's kind of confusing to me because when I tried contacting Ms. Maving, she told me to go through Asurint. So I'm still confused as to the process, but yeah.

THE WITNESS: I'm sorry.

MS. LAMAR: Wait. We got --

MR. KIM: Yeah, we should go off record. Do you need to talk to me outside?

A. And I --

Q. Were you going to say something else?

A. I still don't really know, to be honest.

Q. Okay. I'm marking as Exhibit 6 Vons Carrillo 58.

(Exhibit 6 was marked for identification.)

BY MS. LAMAR:

Q. Do you recognize this document?

A. "We are writing to inform you the conditional" --

Q. I'm going to interrupt you. If you don't mind just reading --

A. Okay. Quiet.

Q. -- to yourself because she has to type down whatever you say.

A. Okay.

Okay.

Q. Have you seen this document before?

A. Yes.

Q. And is this the Vons notification to you that your conditional offer of employment had been withdrawn?

A. It looks like it. I mean, I'd have to compare with my emails to tell you if it's the exact, but the -- unless I'm remembering the dates incorrectly, but I thought I was -- Laura had asked me, you know, to leave

just that -- the fact that she found the phone in my car was the issue. Like if the phone was with my mom, I was authorized to use it.

Q. Didn't she also tell the Court that when they did a routine review of your computer and looked at reports from your computer that it reflected that you were visiting pornography sites?

A. No. Other than August, no.

Q. Okay. After you had this violation, you were reminded about the importance of your -- following your supervised conditions. Correct?

A. Yes.

Q. And that you were to comply with your computer monitoring agreement. Correct?

A. Yes.

Q. We're going to mark as Exhibit 7 -- this was marked as Exhibit C, and it is the petition for warrant or summons for offender under supervision.

(Exhibit 7 was marked for identification.)

BY MS. LAMAR:

Q. Do you recall seeing this document before?

A. Yes.

Q. And on here it says, "On or about August 4, 2024, Mr. Sandoval patronized websites where there were images of sexually explicit conduct of adults, is the

primary material for entertainment available as evidenced by the forensic examination report dated October 7, 2024, by Mr. Sandoval's own admission to the probation officer on August 6, 2024."

Did you admit to the probation officer on August 6, 2024, that you were visiting websites where there were images of sexually explicit conduct of adults?

A. I admitted that I visited websites where there was sexually explicit conduct. I didn't use those words, but I admitted into clicking in pornographic websites.

Q. And also, on or about August 4 of 2024, you had viewed materials that depict actual sexually explicit conduct involving adults?

A. I didn't admit to that.

And by the way, the reason why I'm appealing is because I didn't get a chance to respond to this. And so in my response, it's going to clarify a lot of things that I disagree with Ms. Johnson's -- the way that she stated things.

Q. Okay. So she says, "On August 6, 2024, Mr. Sandoval reported to the U.S. probation office to discuss conduct observed on his computer monitoring."

MR. KIM: I'm sorry. Where are we?

MS. LAMAR: Under "Grounds for revocation."

BY MS. LAMAR:

Q. "This officer showed Mr. Sandoval several printed-off screenshots of what was observed, to include an image of 'CAM4 warning page' which was retrieved from his computer monitoring screenshots, which warns users that the site being accessed contains sexually explicit material."

Is it your testimony that that never happened?

A. No. I said that I admitted into clicking into a website. All I saw was, you know, "Are you 18?" Of course, I deduced from that that it's a porn website, and I admitted to Ms. Johnson that I clicked into the website by clicking, "Yes, I'm 18."

I think that's what it's referring to with "CAM4 warning page."

Q. Okay. And she further says that "Mr. Sandoval admitted that he knew he was entering a porn site and did not read the warning label because he knew he was over 18 years of age." Is that correct?

A. Yeah. And that's what I just said.

Q. "When Mr. Sandoval was asked why he is viewing pornography, he expressed that he did not intend to view sexually explicit images despite going onto a pornographic website. Due to the violation conduct,

Mr. Sandoval's monitored Dell laptop was seized on this date for further forensic review."

So is it true that your Dell laptop was seized on that day?

A. Yes.

Q. She goes on to say, "On October 7, 2024, a forensic exam was completed on Mr. Sandoval's Dell computer. A review of the forensic extraction report revealed Mr. Sandoval frequented several websites on his monitored device where sexually explicit materials of adults was available to include PornHub." Is that true?

A. I disagree with the wording of "frequented several." So there were two, and it would -- happened just that day within the course of less than 15 minutes.

So I would have stated it differently. I don't agree with the way she stated it, which, like I said, that's why I'm -- part of the reason why I'm appealing.

Q. Okay. Did you visit PornHub?

A. I think that was one of the sites where one of the two videos I saw partially were on. I don't remember exactly. I'd have to look for the exact video here and see if it says PornHub or not, but that could be just one that, like I said, registered among all these that I didn't actually click into. So I don't --

the only way I could tell for sure is if I look at the video I saw partially and see that it says PornHub and then I can confirm, yeah, that was the one.

Q. Did you visit Chaturbate?

A. Same -- same answer.

MR. KIM: Calls for speculation.

THE WITNESS: Same answer.

BY MS. LAMAR:

Q. Did you visit Babepedia?

MR. KIM: Calls for speculation.

THE WITNESS: Same answer.

BY MS. LAMAR:

Q. What's your answer?

A. I would have to look through all of this to see which website the two videos that I partially saw was actually on, because if it wasn't on Chaturbate or Babepedia, then, no, those were just logged among these -- I don't know how many websites that were logged within those 15 minutes.

Q. Did you visit Cam4?

A. Same answer.

MR. KIM: Calls for speculation, relevance.

BY MS. LAMAR:

Q. Did you visit Xhamster?

A. Same answer.

MR. KIM: Calls for speculation, relevance.

Give me a second to interpose an objection.

BY MS. LAMAR:

Q. Did you visit xxxhdsex.cc?

MR. KIM: Same objection. Relevance.

THE WITNESS: Same answer.

BY MS. LAMAR:

Q. Did you visit Leeporn?

MR. KIM: Same objections. Relevance, speculation.

THE WITNESS: And already answered, yes, already answered -- sorry. Same answer as before.

BY MS. LAMAR:

Q. She also said that "A review of the website Mr. Sandoval visited revealed a video displaying a woman walking down the street in a thong bikini bending over exposing her vagina." Is that true?

A. No.

Q. "On that same date at 10:48 PM, Mr. Sandoval accessed the Xhamster website" -- it's spelled out. I'm just shrinking it. "A review of the website revealed a bold header, 'xHamster is adult only website.'" Is that true?

MR. KIM: Okay. Relevance, calls for speculation.

THE WITNESS: Is --

MR. KIM: Asked and answered to all of this.

THE WITNESS: Is what part of the question true? Does it stay xHamster is adults only website? I don't remember, but it is.

Since this one is more specific to the bikini, I would have to say that's probably the website that -- where I saw the woman in a micro bikini dancing or maybe it was two women. But, again, I closed the video. And if my attorney had looked at it up until where I closed it, he would have argued, no, I didn't see any part where it evolved into actual sexually explicit conduct or pornography.

BY MS. LAMAR:

Q. "Once in the site, there were many sexually explicit thumbnail videos which displayed sexually explicit images, such as a woman laying on her back with an erect penis over her face." Is that true?

MR. KIM: Relevance, calls for speculation, asked and answered.

THE WITNESS: I have no recollection whatsoever of any of the thumbnails.

BY MS. LAMAR:

Q. "The specific video title, 'string-bikini-5-pack,' shows a woman in a string bikini

BY MS. LAMAR:

Q. Have you seen Exhibit 27 before?

A. This looks like the background check report.

Q. So I was just saying, have you seen this document before?

A. Yes.

Q. If you can go to Bates stamp 22. So at the bottom right, it starts -- the first page is 17. Go to page 22.

A. 22? Yes.

Q. Actually, I'm sorry. Go back to 21.

A. Okay.

Q. So where it says, "By clicking 'I agree' below, I acknowledge that I have read and understand the information above." Did you type this "I agree"?

A. Yes.

Q. Okay. And then it asks -- at the very bottom of 21, it says, "For purposes of this and the following question, the conviction date is the date of sentencing," and there's a "Yes" there.

And then it says, "If the answer to this question is 'yes,' please list each conviction." And did you write here, "Receipt of an image of minor. August 2017. San Diego"?

A. Where are the answers?

Q. On Vons 22.

A. 22. Okay.

Q. And it's highlighted on yours.

A. The answer is yes.

Q. And I'm asking, where you see it highlighted, did you type in that "Receipt of an image of a minor"?

A. Yes.

(Exhibit 28 was marked for identification.)

BY MS. LAMAR:

Q. What is this document?

A. This is the questionnaire that he sent yesterday.

Q. Okay.

A. Yeah.

Before that, I mean, there's -- let's see.

All of these are text messages with my new probation officer.

Q. Okay.

A. I sent those yesterday because --

MR. KIM: Don't -- you don't have to --

THE WITNESS: Okay.

MR. KIM: Just don't disclose discussions.

THE WITNESS: Okay. Okay.

Yeah.

///

I, the undersigned, a Certified Shorthand Reporter of the State of California, do hereby certify:

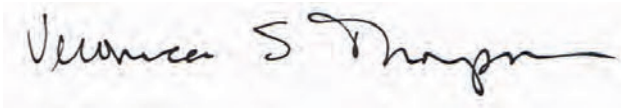
That the foregoing proceedings were taken before me at the time and place herein set forth; that any witnesses in the foregoing proceedings, prior to testifying, were duly sworn; that a record of the proceedings was made by me using machine shorthand, which was thereafter transcribed by me; that the foregoing is a true record of the testimony given.

Further, that if the foregoing pertains to the original transcript of a deposition in a federal case, before completion of the proceedings, review of the transcript [ ] was [X] was not requested.

I further certify I am neither financially interested in the action nor a relative or employee of any attorney or party to this action.

In witness whereof, I have this date subscribed my name.

Dated: November 2, 2025



Veronica S. Thompson
California CSR 6056, RPR, CRR, CCRR